

Court No. - 5

Case :- WRIT - C No. - 16091 of 2020

Petitioner :- Yashveer Singh Alias Babloo

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pramod Kumar Singh, Devottam Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Heard learned counsel for the petitioner and Sri Rajesh Yadav, learned counsel for the respondent Nos.1, 2 and 3.

This writ petition has been filed challenging the demand notice dated 23.03.2020 issued by the Executive Engineer/ Prescribed Authority.

Learned counsel for the respondent Nos.1, 2 and 3 states that the petitioner has a right to make an objection under Para-6.5 of the U.P. Electricity Supply Code, 2005 and, therefore, if the petitioner submits an objection within three weeks, then his objection shall be decided by the competent authority expeditiously, in accordance with law.

In view of the stand taken by the learned counsel for the respondent as afore-noted, **we dispose of this writ petition** giving liberty to the petitioner to submit an objection along with a copy of this order before the concerned Executive Engineer and in the event such an objection is filed within the stipulated period, the competent authority shall decide it in accordance with law, expeditiously, preferably within next six weeks, after affording reasonable opportunity of hearing to the petitioner.

It is made clear that we have not expressed any opinion on merits of the case of the petitioner.

Order Date :- 13.10.2020

NLY